

UD LAW AND MOTION CALENDAR
MONDAY, JULY 13, 2026

02:00 PM

22-CIV-01897 SHUYIN NG, ET AL. VS. CHRISTINE M. BOLTS
LINE 11

SHUYIN NG
CHRISTINE M. BOLTS

CHRISTOPHER W. ROSE
MARQUISHA L. MCGRUDER

DEFENDANT CHRISTINE BOLTS' MOTION TO COMPEL WRITTEN DISCOVERY AND REQUEST FOR MONETARY SANCTIONS *(continued from 06/01/26)*

TENTATIVE RULING:

Defendants motion to compel is denied. Plaintiff's request for sanctions is also denied.

On October 7, 2025 Defendant filed a motion to compel that was scheduled for June 1, 2026. It was purportedly unopposed.

On June 1, 2026 the Court continued the hearing to July 13, 2026 and Ordered the parties to an IDC on June 22, 2026. It is of note that Defendant twice failed to follow Court rules and direction in preparation of the Order and the Court was forced to reject the first Order and edit the second Order, which also, at least, implicitly reminded the Defendant of the Zoom address of the IDC.

On June 22, 2026 Defendant failed to attend the IDC (by acknowledged mistake), appearing in Department 11 rather than Department 30.

At the conclusion of the IDC, Commissioner Elliot's minutes reflect (in part): "The Commissioner held a brief discussion with Attorney Rose. The issues presented by this IDC appear to be relatively minor, and it seems to the Commissioner that they can - and should - be resolved without the need for the 07/13/2026 hearing on Defendant's motion to compel. It is unclear to what extent counsel have engaged in good faith meet and confer. The Commissioner strongly encourages counsel to engage, or reengage as the case may be, in good faith and straightforward meet and confer to clarify the issues that may need resolution herein. The IDC was concluded at 2:15 p.m. NOTE: After conclusion of the IDC and during preparation of this Minute Order, the Commissioner was informed that Attorney Marquisha McGruder appeared in Dept. 11 in an attempt to join the IDC. Judge Silberman's instructions in the 06/15/2026 Order were clear, however, that the IDC was to take place in Dept. 30, and the Zoom credentials for Dept. 30 were provided in the Order. If the parties would like to reset the IDC, they are encouraged to promptly email the IDC Clerk and request the earliest possible date."

According to Plaintiff's Opposition filed on June 29, 2026, Defendant attempted to reschedule the IDC but Plaintiff thwarted it on procedural grounds. Plaintiff apparently also made no effort to reach out to Defendant to resolve the dispute (if any).

As noted in its tentative for June 1, 2026 it was unclear to the Court whether the Defendant properly noticed this motion or properly served the underlying discovery. It was also unclear whether there is any discovery dispute(s) remaining. Plaintiff contends there is not and the motion is moot.

Defendant filed a reply on July 6, 2027. Having reviewed it, the Court is still unclear as to the nature of the existing dispute. At most it appears that Defendant is unsure based on the Plaintiff's responses whether Plaintiff has fully responded. But Defendant fails to identify with any specificity a single piece of substantive information that has not been provided or as to which Defendant lacks access. Accordingly, there is an insufficient record supporting the Defendant's motion and it is therefore denied. The Court would have considered the Plaintiff's request for sanctions more seriously if Plaintiff had not also contributed to this situation by both (admittedly) failing to timely respond to the discovery at issue for months and then thwarting the Court's IDC Order in what appears to be an attempt prove some sort of point. It is unclear on this record whether either or both parties have abused the discovery process. What is clear is that neither parties' conduct has been consistently respectful of each other or Court resources. In the future, the Court expects meaningful meet and confer and behavior in accordance with California Attorney Guidelines of Civility and Professionalism available at <https://www.calbar.ca.gov/legal-professionals/ethics-compliance-practice-resources/ethics/attorney-civility-and-professionalism>.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare a formal written Order.



POSTED: 3:00 PM